

ammunition for an air weapon to a person under the age of fourteen it shall be a defence to prove that the person charged with the offence believed the other person to be of or over that age and had reasonable ground for the belief.

4. In this Act—

“air weapon” means such a weapon as is specified in paragraph (b) of subsection (1) of section sixteen of the Firearms Act, 1937 (that is to say, an air gun, air rifle or air pistol not being of a type declared by rules made by a Secretary of State under that Act to be specially dangerous); Interpretation.

“firearm” has the same meaning as in the said Act of 1937;

“premises” includes any land;

“public place” includes any highway and any other premises to which at the material time the public have or are permitted to have access, whether on payment or otherwise; and

“shot gun” means such a weapon as is specified in paragraph (a) of subsection (1) of section sixteen of the said Act of 1937 (that is to say, a smooth-bore gun having a barrel not less than twenty inches in length).

5. In subsection (9) of section four of the said Act of 1937 (which makes with respect to exemption from firearm certificates provision similar to that made by paragraph (b) of subsection (5) of section one of this Act) after the words “other than” there shall be inserted the words “such weapons as are specified in paragraph (b) of subsection (1) of section sixteen of this Act or”. Amendment of
Firearms Act,
1937.

6.—(1) This Act may be cited as the Air Guns and Shot Guns, etc., Act, 1962. Short title and
extent.

(2) This Act does not extend to Northern Ireland.

CHAPTER 50

An Act to require the giving of information by landlords to tenants; and for purposes connected therewith.

[1st August, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where a person (hereafter in this Act referred to as the “tenant”) has a right granted to him or any predecessor in title Provision of
rent books.

of his by a contract or conferred by an enactment to occupy any premises as a residence in consideration of a rent, and that rent is payable weekly, it shall be the duty of the landlord to provide a rent book or other similar document for use in respect of the premises.

(2) The foregoing subsection shall not apply to any premises if the rent includes a payment in respect of board and the value of that board to the tenant forms a substantial proportion of the whole rent.

Information to
be contained
in rent books.

2.—(1) A rent book or other similar document provided in pursuance of section one of this Act shall contain—

(a) notice of the name and address of the landlord of the premises in respect of which the rent book or document is to be used; and

(b) if the premises are occupied by virtue of a contract to which the Furnished Houses (Rent Control) Act, 1946, applies, particulars of the rent and of the other terms and conditions of the contract and notice of such other matters as may be prescribed; and

(c) if the premises are a dwelling-house to which the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939, apply, notice of such matters in addition to the name and address of the landlord as may be prescribed;

and if the premises are occupied as aforesaid or are such a dwelling-house as aforesaid any such notice or particulars shall be in the prescribed form.

(2) In the Rent Restrictions Regulations, 1957, regulations 4 and 5 and the Second Schedule shall be deemed to have been made under the foregoing subsection and shall continue to have effect accordingly until varied or revoked under this Act.

Information
to be supplied
by companies.

3.—(1) Where the landlord of any premises to which subsection (1) of section one of this Act applies is a company, and the tenant serves on the landlord a request in writing to that effect, the landlord shall furnish to the tenant in writing particulars of the name and address of every director and of the secretary of the company.

(2) A request by the tenant of any premises under the foregoing subsection shall be deemed to be duly served on the landlord if it is served on any agent of the landlord named as such in the rent book or other similar document or on the person who receives the rent of the premises, and any such agent or person on whom such a request is served shall as soon as may be forward it to the landlord.

Offences.

4.—(1) If the landlord of any premises to which subsection (1) of section one of this Act applies fails to comply with any relevant requirement of the foregoing provisions of this Act, he and (except

in the case of a failure to comply with subsection (1) of section three of this Act and subject to subsection (5) of this section) any person who on his behalf demands or receives rent in respect of the premises while any such requirement is not complied with, shall be guilty of an offence.

(2) If any person fails to comply with any requirement imposed upon him by subsection (2) of section three of this Act, he shall be guilty of an offence.

(3) Any person guilty of an offence under subsection (1) or subsection (2) of this section shall be liable on summary conviction to a fine not exceeding fifty pounds or, in the case of a second or subsequent conviction for an offence under either of those subsections, to a fine not exceeding one hundred pounds.

(4) If any default in respect of which a landlord is convicted of an offence under subsection (1) or any other person is convicted of an offence under subsection (2) of this section continues for more than fourteen days after the conviction, that landlord or other person shall be deemed to have committed a further offence under that subsection in respect of that default.

(5) If any person other than the landlord is charged with an offence under subsection (1) of this section, it shall be a defence for him to show that he neither knew nor had reasonable cause to suspect that any requirement such as is mentioned in that subsection had not been complied with.

(6) Where an offence under this section committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he as well as the body corporate shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

5. Sections ten and eleven of the Rent and Mortgage Interest Restrictions (Amendment) Act, 1933 (which relate to the powers of local authorities with respect respectively to the publishing of information and to the prosecution of offences) shall have effect as if any reference therein to the principal Acts included a reference to this Act. Powers of local authorities. 23 & 24 Geo. 5. c. 32.

6. In this Act—

Interpretation.

- (a) the expression "landlord", in relation to any premises occupied by a tenant under a right granted by a contract, means the person who granted that right or any successor in title of his, as the case may require, and, in relation to any premises occupied by a tenant under a right

conferred by an enactment, means the person who, apart from that right, would be entitled to possession of the premises;

- (b) the expression "prescribed" means prescribed by regulations made by statutory instrument by the Minister of Housing and Local Government which may make different provision for different cases and shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Short title,
commence-
ment, extent
and repeals.

7.—(1) This Act may be cited as the Landlord and Tenant Act, 1962.

(2) This Act shall come into operation on the expiration of the period of three months beginning with the date on which it is passed.

(3) This Act shall not extend to Scotland or Northern Ireland.

(4) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Section 7.

SCHEDULE

REPEALS

Session and Chapter	Short Title	Extent of Repeal
23 & 24 Geo. 5. c. 32.	The Rent and Mortgage Interest Restrictions (Amendment) Act, 1933.	In section fourteen, paragraph (b) of subsection (1) and subsection (3).
1 & 2 Geo. 6. c. 26.	The Increase of Rent and Mortgage Interest (Restrictions) Act, 1938.	Section six.
5 & 6 Eliz. 2. c. 25.	The Rent Act, 1957 ...	In section twelve, subsection (6). In the Sixth Schedule, paragraph 20.
5 & 6 Eliz. 2. c. 56.	The Housing Act, 1957...	Section eight.

